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Loudoun County Board of Supervisors, Joint Board of Supervisors & School Board Committee, Monday, April 17, 2023

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- Official meeting video (county, Granicus): https://loudoun.granicus.com/player/clip/7255
- Agenda (Granicus): https://loudoun.granicus.com/AgendaViewer.php?view_id=73&clip_id=7255

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-22. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:00:02] - Good afternoon, I am calling to order this Monday, April 17th meeting of the Joint Board of Supervisors and School Board Committee meeting. The first item on our agenda is public input. I have been notified that no one tonight is signed up for public comment.

[00:00:22] So I will skip over that item and go to item three on the agenda, the co-chairs report on the Board of Supervisors and school board activities. Co-Chair Glass. Thank you, Co-Chair Sorotkin.

[00:00:45] I have two quick updates on Board of Supervisors' activities for the committee. On Tuesday, April 4th, the Board of Supervisors adopted the budget for fiscal year 2024, which is July 1st, 2023 through June 30th, 2024. The budget includes approximately 63% of the average tax dollar going towards the school system through general appropriations, capital improvement projects, and debt service.

[00:01:12] The total local SACS funding transfer will be around $1.1 billion and is a $72 million increase over the last fiscal year. Additionally, on March 21st, the Board of Supervisors received a report from the Northern Virginia Community College about the Loudoun campus and higher education activities in the county.

[00:01:34] Through NOVA's partnership with LCPS through the dual enrollment and other programs, our students and young people are served well for educational options. my report. Co-chairs, Rodkin. Thank you. Thank you, co-chair Glass. Just two brief items that I have that may be of interest to the Board of Supervisors. As I'm sure you're already aware, the school board did vote at our March 28th meeting to authorize collective bargaining within Loudoun County Public Schools. As part of that, we delegated the writing of a detailed collective bargaining resolution to

[00:02:07] our legislative and policy committee. And that is due back for action to the full school board by the end of 2023. Aside from that, on the budget front, we are still awaiting the finalization of a state budget. The latest update we've gotten is that that is not expected until potentially as late as late June. So we are still waiting on the edges of our seats to see what happens down in Richmond and the effect that that will have on the on the county school budget and that will

[00:02:42] conclude my report. So I have been asked to move up item six additions deletions to the annual work plan earlier in the agenda so without objection we'll we'll take that up out of order. So there have been two recommendations for additions to the work plan one by myself and then one brought up by co-chair class. So briefly, mine is to add an information and potential action item on the county and school board budget process, specifically the scheduling and timing of them

[00:03:22] in future years. We go, at least on the school board side, we go significantly earlier than many other of our surrounding counties in Northern Virginia and the DC area. And there's a couple of effects that that has, the first being that often or really always by the time the school board adopts our budget, the county, the state has not adopted their budget.

[00:03:48] So it's very much an unknown some years how much money we're going to get in revenue from the state. The second thing that happens is that because we go earlier than the Fairfax School Board, Prince William County School Board, and others, they get to see what we're doing and often make adjustments to their budget based off of that.

[00:04:11] If they say that we're giving, for example, a 3% raise to teachers, they may say, okay, Loudon's giving 3%, we'll give 4% so that we stay ahead of them. So I thought it would be, especially given this year's uncertainty out of Richmond, I I thought it would be useful to just talk about what the drivers of the timeline are and see if there are any alternatives or possibilities for having an alternate timeline in future years in order to try and alleviate those problems.

[00:04:38] So that's the item that I'm requesting to be added to our work plan. Well, making a recommendation to both our boards that that be added. And I will ask CodeCare Glass to describe the item that she brought up for discussion.

[00:04:56] - Well, I would like to add, item for the pickleball and actually i'd like to make a motion so we can go ahead if you all don't mind i move that the joint board of supervisors and school board committee recommend that the board of supervisors and the school board approve an amendment to the 2023 work plan by adding to the pickleball courts information items scheduled for the june meeting information relating related to the installation of lights at the school tennis courts, and information related to

[00:05:30] policy 6310, facility use, to discuss possible revisions that would allow for individual use of lights at school tennis and pickleball courts. Seconded by Supervisor Bristman.

[00:05:46] Co-Chair Glass, would you like to speak to your motion? I think the motion speaks to itself. Further discussion? Supervisor Bristman. Thank you, Chair Sirotkin. Can I just ask Supervisor Glass a quick question? Sure.

[00:06:02] Is this intended to expand the time that folks can use pickleball courts? That's what we're looking into. Okay. Okay, great. So it's my understanding that sometimes the lights are just shut off, and then if someone wanted to reserve the court time, they don't have the power to turn on the lights.

[00:06:21] Right, exactly. Well, I'm all for anything that expands. the amount of time people can play pickleball thank you is there further discussion co-chair glass seeing no further discussion we'll place the matter to a vote all in favor of recommending to our boards to add the pickleball discussion to our work plan please raise your hand and say aye aye uh before we finalize the vote on that i am realizing that we uh did not uh consider

[00:07:00] consider miss corbeau's request for remote participation and we need to do that before or taking formal action during the meeting. So without objection, we'll briefly table that and move back to remote participation. So I've been notified that Ms. Corbo would like to remotely participate in tonight's school board meeting.

[00:07:20] Ms. Corbo, could you please state your location, whether this is a medical or personal matter, and if anyone is present with you at your location? - Thank you. I am home, I'm alone. Under policy 2420, I'm asking for remote meeting participation due to an ongoing disability medical condition as recommended by HRTD and also as allowed under federal ADA disability law. Thank you. At this time, I will entertain a motion that Ms. Corbo's remote participation tonight be granted for health

[00:07:58] and medical reasons. It doesn't appear that anyone is going to make that motion. Ms. Corbo, would you like to request participation for a personal matter tonight? Because personal exemptions are limited and this is a medical request, I will not be doing that.

[00:08:20] Thank you. Okay, thank you. So we will now take up from the table the motion that was briefly tabled to recommend to our boards that the pickleball information item be added to our work plan for the year.

[00:08:36] Is there any further discussion on that item? Seeing none, all those in favor, please raise your hand and say aye. Aye. That motion will pass unanimously of members present with Ms. Corbeau absent for the vote. And I will move that the information item on county and school board budget scheduling that we also recommend to our boards to add that to our work plan for the year.

[00:09:02] Is there a second? Seconded by co-chair Glass. Is there any further discussion? Ms. Reeser. Thank you, Mr. Chair. could we go ahead and decide which month that will be taken up as we did with the other item so that we don't have to revisit that certainly just does staff have a recommendation based on the

[00:09:25] existing work plan of which month we could or should add that to and could I just add that it likely needs to be our very next meeting if it's going to if it's going to happen in time for the next budget season our staff starts preparing the budget I believe in July or August Does staff have any concerns with adding it to our June meeting?

[00:10:04] We're just sitting here trying to think through the timing also, though, for the next meetings and understanding that there would be a recess in August. You either have June or September. I think for our purposes, September would likely be the preferred meeting, but of course it's your decision.

[00:10:23] So without objection, I'll amend my motion to add it -- to recommend adding it to September within our work plan. Further discussion? Seeing none, all in favor, please raise your hand and say aye. Aye.

[00:10:39] That motion will pass unanimously of board members present with, or committee members present with Ms. Corbo absent for the vote. With that, we will move to item four, our information item tonight on the SRO memorandum of understanding.

[00:10:58] And I believe that Ms. Boland has the first presentation tonight, so I will turn it over to her. I do. Thank you very much. I appreciate the time this evening to talk through the work group that is reviewing the current MOU, as well as a little bit about Title IX, as is required by LCPS.

[00:11:19] Mr. Lewis, do you want me to just say next slide?

[00:11:35] Okay, perfect. Thank you. So, review of the Loudoun County Public Schools and Law Enforcement Memorandum of Understanding began on January 19, 2023. This work included weekly meetings with designated members from the school division, Loudoun County Sheriff's Office, and the Leesburg Police Department.

[00:11:57] This group worked together with a common goal in mind to ensure a safe and secure learning environment for students and staff. In an effort to strengthen communication between parties and reinforce our commitment to our partnership, we agreed to make all changes and edits to this document in the room with all parties involved and utilize two roles to support the process.

[00:12:26] The first was a facilitator. This individual was neutral to the content, allowing all participants to remain engaged in the process. This individual assisted with keeping us on task, posing questions when appropriate, and elicited clarity on next steps that could be captured in a shared agenda.

[00:12:48] The second role included a recorder or note taker. Again, this individual was neutral content to the content and allowed all participants to remain engaged in the process. This individual recorded ideas and comments from the group, sharing the information in a running agenda and working draft available to all parties.

[00:13:10] This group has held five meetings before completing a first draft on February 16, 2023, which then was shared with senior leaders and legal counsel for review. The group reconvened on March 23 to share recommended edits and finalize the second draft.

[00:13:31] Last week, Dr. Smith met with Sheriff Chapman and Chief Grigsby to discuss the draft MOU, and this morning, a red-line version was shared with LCPS School Board Advisory Groups for feedback. All feedback will be reviewed and discussed by the MOU workgroup, and a final draft of the MOU will be brought before the School Board as an information item in late May.

[00:13:58] Next slide. To begin to answer some of the questions posed at the previous meeting, LCPS has a Title IX team, which includes individuals who have been trained to be Title IX coordinators, investigators, decision makers, and appeal reviewers through the Association of Title IX Administrators, also known as ATICSA.

[00:14:24] Under the Title IX rule, students, employees, the Department of Education, and the public must be able to examine the division's training materials. All materials used to train LCPS staff and school administrators in the Title IX complaint resolution process can be found on the LCPS website.

[00:14:47] Additionally, Title IX team members, contact information, community resources, and the formal complaint form are also available. All information pertaining to Title IX can easily be accessed from the homepage or on the Human Resources and Talent Development webpage.

[00:15:08] Next slide. Regardless of whether a formal complaint is filed, the first steps of the Title IX process are the same. Upon receipt of a report of a possible Title IX violation, the Title IX coordinator or designee contacts the complainant and the respondent to discuss the availability of supportive measures and provide an overview of the Title IX process.

[00:15:34] A formal complaint is not necessary or required for supportive measures to be requested or implemented. Once a formal complaint is filed and a Title IX investigation is initiated, disciplinary consequences cannot be imposed on the respondent until the formal Title IX grievance process is complete.

[00:15:55] In response to a formal complaint, the Title IX coordinator or designee provides written notice of the investigation and allegations to all parties known. The Title IX coordinator or investigator conducts a fair and impartial investigation on formal complaints that fall within the scope of Title IX resulting in an investigative report that fairly summarizes relevant evidence.

[00:16:24] Complainants and respondents are afforded two separate 10-day review periods. If additional relevant information is provided by either party, the Title IX investigator may be required to conduct additional interviews and or edit the report.

[00:16:41] Extensions to these review periods can be requested by the complainants and respondents and granted by the Title IX coordinator. At the conclusion of the second 10-day review period, the investigative report and all relevant evidence is transferred to a third party Title IX decision maker. Upon completion of the review, the outcome, any relevant sanctions and appeal rights are provided to all parties. If an appeal is submitted and determined to meet the requirements necessary of an appeal within the Title IX regulation, a third party appeal officer is secured and provided the necessary investigative

[00:17:18] information. This appeal determination is final. The reason why I go through each and every one of these steps in this level of detail is to make it apparent that any Title IX investigation can take months. It can take as little as three months to over 18 months if the complainant or the respondent uses each level of the appeal process that has been granted to them.

[00:17:45] In addition, because of our Title IX requirements and the need to share all information, LCPS very closely with both Leesburg Police Department and the Lowndon County Sheriff's Office to investigate concurrently but not jointly in a lot of these matters because they are unable to share certain information and we are unable to disclose certain information from each of the parties. Next slide. When

[00:18:22] alleged sexual misconduct could constitute a violation of Title IX, the The Title IX coordinator works with the complainant and the respondent to offer supportive measures considered necessary to protect the safety of one or more students or other persons and or maintain access to the LCPS educational programs and activities.

[00:18:45] Supportive measures are individualized services that are considered reasonably available, non-disciplinary in nature, and are not unreasonably burdensome for the other party. Some examples include no contact directives between parties, counseling referrals or flash passes, schedule modifications, academic adjustments, and changes in work or school locations.

[00:19:13] Next slide. Additionally, Title IX regulations allow for the removal of a respondent entirely or partially from its educational program or activities on an emergency basis if there is an immediate threat to the physical health or safety of any student or other individual arising from allegations of Title IX sexual harassment.

[00:19:36] If after a review of the reported allegations, it appears there is a safety risk in allowing a student respondent to remain at school, the Title IX coordinator makes a referral to the school-based threat assessment team and the threat assessment supervisor to initiate a threat assessment.

[00:19:56] This threat assessment is the basis for the individualized safety risk analysis required by law. Considerations of the assessment include the nature, duration, the severity of the threat posed by the student, the probability that the threatening behavior or circumstances will occur or continue to occur, whether the threat to a person's physical health or safety arises from allegations of prohibited conduct as set forth in LCPS's Title IX policy, whether or if there are reasonable alternatives to emergency removal that would sufficiently mitigate any risks and consideration of applicable disability laws.

[00:20:36] The same removal procedure requirements do not apply to employee respondents. An accused employee may be placed on administrative leave pending the outcome of the grievance procedure in accordance with LCPS's policies and practices and in coordination with HRTD's workplace relations team. An individualized safety and risk analysis is not required. There are a number of changes that are coming out to Title IX. The new rules looking ahead are anticipated to be announced

[00:21:14] in May of 2023. The public comment period ended in September of 2022. These changes include expansions of the definition, which would eliminate the and and require or, which will require additional investigations and additional work with law enforcement. And I believe now I am handling handing it over to before we before we do that i i i got a request from uh some of the committee members to pause here for questions in case anyone had uh questions relating to title

[00:21:52] nine generally or the the first portion of the presentation committee members supervisor brissman i originally was going to ask some questions about title nine but you answered the one main question i had and then i'm re revisiting the item and um we didn't really even ask about title line in the item. So I do appreciate the information, but most of my questions will be directed at LCSO. Thank you. Any additional questions at this point? Okay, seeing none, Colonel Sawyer, go ahead. Thank you. Thank you. Good afternoon, Co-Chair Sorokin, Co-Chair Glass,

[00:22:31] members of the joint committee. As I begin, it's important to note that the slide headings are consistent with the statements in the work plan for the ease of following along. So I'm just going to work down from the work plan kind of one through six, and the slide headings will correspond respond with that. So the first question revolves around the training required to investigate sexual assaults. And I'm addressing this just from the law enforcement perspective as LCPS has already addressed this from their perspective. Well, I'll discuss more about the process of investigation during this presentation. It's important to start with the fact that at the highest level, all law enforcement officers, including sheriff's deputies, Leesburg police officers,

[00:23:10] are trained to gather the basic facts and information for any criminal violation, including sexual assaults, and this includes SROs. Specific to sexual assault investigations, the first reporting deputy, whether it's a patrol officer, a patrol deputy, or an SRO, will conduct what we call a minimal facts interview.

[00:23:29] The purpose of a minimal facts interview is to allow us to gather the needed information to identify the most appropriate investigative steps, as well as determine the immediate safety needs of the victim, while also minimizing the trauma to the victim and the number of times the victim will need to discuss what has occurred.

[00:23:48] Questions include things like their current physical and emotional safety, what type of abuse has occurred, where it happened, when it happened, etc. Once the minimal facts interview is done and it's determined that a sexual assault has occurred, the case is immediately transferred to the Special Victims Unit in our Criminal Investigations Division.

[00:24:09] The detectives in our Special Victims Unit receive a wide range of specialized training To include child-first forensic interviewing, trauma-informed interviewing, child abuse and death investigations, social media and other electronic investigation courses, legal training, and many others.

[00:24:26] We also have detectives in our special victims unit that specialize in child exploitation, human trafficking, internet crimes against children, and other specialized topics to ensure that we are well-prepared to handle all types of sexual abuse and assault cases. I'm very proud of the incredible detectives we have in our special victims unit.

[00:24:46] These women and men work extremely difficult cases day in and day out, seeing some of the worst events that our agency investigates. But we don't do it alone, which leads me to the next item on the work plan. And you can go to the next slide there for collaboration. And when it comes to collaboration to support victims, we, as in LCESO, LPD, LCPS, collaborate with many organizations to support victims.

[00:25:12] At the highest level, we collaborate together to create a safe and supportive environment for students in our schools on a daily basis and also through hosting special events, trainings, and classes on specific topics. Our SRO program helps build positive relationships with students by engaging in regular communication, providing mentorship, participating in school activities, all of which can enhance trust and respect between law enforcement and students and ultimately help prevent incidents from occurring.

[00:25:41] But when crimes do occur, especially those of a sexual nature, the investigations are complex and require partnerships to achieve best outcomes. Both the LCSO and LPD partner with the Loudoun Child Advocacy Center, or CAC, which provides a child-friendly and coordinated approach to investigating child abuse, which can reduce trauma for child victims and their families, improve communication and collaboration between agencies, and increase successful prosecution of offenders.

[00:26:11] We also have a robust multidisciplinary team that operates through the CAC. I'll discuss more in our partnerships surrounding the CAC later in the presentation. I'm also pleased to announce, which you can go to the next slide if you haven't already, that the LCSO has started a new facility dog program.

[00:26:27] And we have partnered with a local nonprofit, Healing House, to bring Jolene, there's her picture up there, an adorable yellow lab, to assist with interviews of children and victims in crisis. Facility dogs can help alleviate stress and anxiety for child victims during abuse investigations, providing comfort

and support during forensic interviews and court proceedings, and ultimately help to increase the accuracy and reliability of statements.

[00:26:54] Facility dog programs have seen positive results in jurisdictions across the country, also next door in Fairfax, and we're excited to now be bringing this here to Loudoun County. There's also a list up on the slide of some of the organizations, other organizations we partner with, such as Loudoun County Mental Health, Substance Abuse, and Developmental Services, the Department of Family Services, Loudoun Abuse Women's Shelter, National Center for Missing and Exploited Children, the Office of the Commonwealth Attorneys, Victim Witness Services, Loudoun County Public Schools, and many, many others.

[00:27:26] Another example of a specific partnership is the partnership we developed with Project Beloved to create a soft interview room in our headquarters facility, which there's a picture of that there as well, which helps create a much more comfortable and relaxed environment for the individual being interviewed, reducing the trauma experienced in the investigation process.

[00:27:45] So we could talk about this slide for a lot longer. I'll move on. But I also wanted to end with the fact that we also collaborate with services for juvenile suspects as well in an effort to reduce recidivism and help address the root cause. So you can go to the next slide. Transitioning to the chain of command for SRO investigations.

[00:28:02] Again, as a reminder, the titles of the slide are based on the work plan. And I just want to make clear that it's not the SROs that conduct sexual assault investigations. But as it pertains to the chain of command for SROs, for context, I'll start with the fact that both LCSO and LPD have a full-time SRO assigned to every high school and middle school in the county.

[00:28:22] Elementary schools have a specific SRO assigned as their designated point of contact, but not dedicated to that school full-time. The LCSO has 30 SROs, one SRO detective, three sergeants, and one second lieutenant. The LPD has six SROs and one SRO sergeant.

[00:28:42] The LCSO Special Victims Unit has 11 detectives assigned and is overseen by a sergeant. The LCSO's Domestic Violence Unit, which also assists with incidents based on the nature of the allegations, has three detectives and one sergeant. The LPD's Criminal Investigations Division is general assignment, meaning that they are not the same specific dedicated units, but they've got eight detectives, one domestic violence detective, and two sergeants.

[00:29:10] In both of our agencies, and I tried to put a pretty simplified diagram there, but in both of our agencies, the sergeant reports to a second lieutenant who then reports to a captain and then a major. Important to the topic of the meeting is the fact that when an incident occurs or is reported in the school, the notification is made from the SRO to the SRO sergeant and then across to the investigation sergeant for assignment to a detective.

[00:29:35] And I'll discuss more about that communication process on the next slide as we discussed the protocol between LCPS and LCSO for investigating sexual assault. So you can go to the next slide. All right, let me start this discussion by stating that sexual assault investigations are highly complex and differ based on many, many factors.

[00:29:55] Factors such as who the initial report is made to, who the alleged offender is, such as another student, a parent, a teacher, another family member, an unknown suspect, et cetera. When the offense

occurred, such as whether it just occurred, occurred within the past few days, or even occurred several years ago, and where the offense occurred, such as at school, in their home, at an unknown location, or even whether it occurred in Loudoun County, or possibly even in another county or even another state.

[00:30:25] It's not possible to go into all of the contingencies for all of these situations this evening, but I can lay out the general protocols and processes which are included in the law enforcement LCPS MOU and governed by law and industry best practices. Generally speaking, most of our sexual assault investigations in schools begin with an allegation being made to someone in the school.

[00:30:48] It could be a teacher, a counselor, the SRO, a member of school administration, etc. Regardless of who receives that information, the information is passed between the SRO and the school administration to ensure that both sides are aware of the report. LCPS has talked about their internal reporting processes previously, but I'll talk about the law enforcement side.

[00:31:11] And I've already kind of talked about the minimal facts interview that the SRO would then do. And again, if it's confirmed through that minimal facts interview that a sexual assault has occurred, the SRO will notify their sergeant, who in turn notifies the sergeant of the Special Victims Unit. The sergeant of the Special Victims Unit will then review the specifics of that report, assign a detective, and coordinate the next investigative steps based on the nature of the allegation.

[00:31:36] And go to the next slide. So transitioning to the next item on the work plan, funding and staffing needed for LCSO to appropriately investigate sexual assaults. I just want to start by simply stating the LCSO does appropriately investigate sexual assault cases. I'll also stress that the LCSO has invested a significant amount of time and resources ensuring that our detectives are highly trained and follow both national standards and industry best practices.

[00:32:02] There are many standards and best practices that we follow as it pertains to both investigative steps and interviews. For example, our SVU detectives are trained in forensic interviewing under Child First Virginia, which falls under the protocols of the National Children's Alliance. And I'll talk more about forensic interview on the next slide, but I just want to explicitly state that our detectives investigate sexual assaults following national standards and best practices.

[00:32:26] As it pertains to, specifically to staffing, however, I want to reiterate that our SROs are not the ones that conduct those sexual assault investigations. That's done by detectives in our Special Victims Unit. And as I previously said, the Special Victims Unit has 11 detectives and one sergeant. On average, detectives assigned to our special victims unit carry a caseload of 50 to 60 cases per year. Our current performance standard states that if their caseload exceeds 75 cases per year, then we will request additional detective positions from the county during our budget request process. And you go to the next slide. The final item on the work

[00:33:04] plan is interview protocols for underage sexual assault cases. And as I emphasized in the last slide, we follow the best practices set forth by the National Children's Alliance. As such, we strive to have as many forensic interviews conducted at the Child Advocacy Center and by Child Advocacy Center staff who are trained to conduct forensic interviews. We have a phenomenal CAC here in Loudoun County, and it is accredited through the National Children's Alliance. Based on the circumstances of the investigation, interviews are conducted in coordination with the

[00:33:40] families, school, CAC, and or additional support systems. The forensic interview process itself is designed to provide a safe and supportive environment for children to disclose difficult, sensitive information about abuse in a trauma-informed manner. And again, we're excited to be able to bring a facility dog to assist LCSO in the forensic interview process. I also thought it was important to note that during the interview process, victims and non-offending family members are told about the next steps in the investigation process specific to their case and connected to

[00:34:14] resources. In fact, the CAC has a victim advocate on staff who is there to meet with the victim and their family while they are there at the CAC. Our goal is to ensure that they stay well informed and supported through the entire process. And lastly, I wanted to share that throughout this process, we work closely with the multidisciplinary team that I referred to earlier to peer review both the interviews conducted as well as our investigative steps to ensure that we are constantly and continually improving our processes. So with that, that concludes my presentation on

[00:34:48] these topics. As you can likely see, I'm very proud of the work that our SROs and our detectives do on a daily basis. They do extremely difficult work, and I'm proud of the partnerships that we have with LCPS and many of the other organizations that we partner with to help ensure best outcomes for everyone impacted by these cases as again they're often the most difficult and traumatic cases we investigate. Colonel Sawyer thank you for the overview I also want to thank you in the Sheriff's Office and Leesburg Police Department also for your collaboration in reviewing and

[00:35:26] revising the MOU during this time. At this point I will open it up to questions from the committee members. Supervisor Brissman. Thank you, Chair Sorokin, and thank you very much for the presentation.

[00:35:44] I appreciate everyone being here and sharing all the information. Let me just start by saying that I don't believe that we have a systemic issue in our schools with sexual assault. There was at least one case that was handled very, very poorly. Charges and arrests came very, very late, in my opinion and communication failed so hence i wanted to have this committee review the mou and get some information and perhaps make some suggestions after doing that i will have one motion might

[00:36:18] have to be a split motion at the end of our conversation but i do have a number of questions has the loudon county sheriff's department made any changes since the attorney general's grand jury report came out to your processes um to the overall processes in these sorts of cases the no the the recommendations that came out through the special grand jury the eight of them had no recommendations to the specific processes of loudon county sheriff's office okay but there was some criticism in how the loudon county sheriff's department operated in those cases

[00:36:57] so you're saying that there's been no response and no changes even though there was some criticism in that report so again ultimately those the recommendations that came through that report were all based towards loudon county public school there was some on communication and collaboration um you know some comments on that but we communicate and collaborate very well with lcps and we have in the past as well okay great um in the school resource um officer memorandum that we re that we read it's from 2021 but it says in there that um it's supposed to be

[00:37:34] reviewed annually. Is 2021 the most recent one that we have? Yes, it is. So it is, it's required to be reviewed annually, but amended every two years. Just amended every two years. Correct. So every year it is reviewed, but changes are not necessarily made every year unless changes are needed. This is an

amendment year being the second year. So it is being amended this year. Okay. And on page five of the MOU, it states that as soon as it becomes evident that a reportable offense has occurred school officials shall stop immediate review and turn over to police uh is that still

[00:38:09] the case just find where you are it was on page five of the mou yes and um and report the potential offense to law enforcement yes okay so anytime there might be a potential reportable criminal offense the schools are required to stop investigating and it's handed over to the

[00:38:46] sheriff's department so for clarity when they're talking about reportable criminal offenses that's not that's not a reportable offense as as we would normally use reportable offense as in any offense that occurs in the community that's referring back to section 22.1 279.3 of the code of virginia which lists out specific reportable offenses where communication is required between the schools and the sros that makes sense okay how long does it usually take an sro to decide if a report reportable offense has occurred so again offenses could come in many

[00:39:24] different, you know, shapes or forms. When it comes to, you know, sexual assault investigations specifically, they're going to conduct a minimal facts interview. And if there's elements of a criminal offense there, they're going to make that notification immediately. Okay. There are four trainings required for SROs, but none of them specifically address sexual assault or trauma informed policing or care when investigating those allegations. So why aren't SROs required to have some sort of trauma-informed policing training since they may be in touch with students who have suffered sexual assault or domestic violence.

[00:40:03] So we do a significant amount of training well above what's required within our school resource officer unit. So I'll start with that. I agree. There was a lot of required training. I totally agree. But there wasn't anything specific to sexual assault, domestic violence, trauma-informed training.

[00:40:22] Right. So our SROs go through the minimal facts interview training because that's as far into sexual assault cases as we want them to go, and that is all designed around trauma-informed. That's the entire purpose of the minimal facts interview, is to make sure that the questions that they're asking and the way they're asking is as least intrusive as possible to only establish elements of a potential offense so that that information can then be relayed to the Special Victims Unit and in turn through the Child Advocacy Center and investigate it that way.

[00:40:53] But if someone's a victim of a sexual assault and they have to tell their story to an SRO and then again tell their story to an SVU officer and maybe travel somewhere to go to a soft interview room because there's no soft interview rooms in the schools, I presume, doesn't that just re-traumatize the potential or alleged victim?

[00:41:11] So we don't ask them to tell their story. That minimal facts interview doesn't get into the specifics of the story. We use questions like, if you were to tell me what happened, then who would have done it or where would it have happened?

[00:41:27] So it's specifically designed to not get the person to have to relive and re-experience that trauma. So we don't get the details. We don't ask them the specific details in that minimal facts. It's literally designed to frame when it occurred, where it occurred.

[00:41:45] It's all about immediate safety. Is it someone at their house that they can't go home today because that's the dangerous environment? We need to know that right away. So it's very, very surface-level

questions specifically asked in a way to not have the victim have to answer the specific details as to what happened to them so that they only have to do that really one time.

[00:42:08] And you believe that that can happen if you're interviewing somebody, that they aren't being traumatized by having to even think through when something happened or try to tell you who might have done it? Or if they're safe to go home? So I can't say that that's not going to have any trauma to them.

[00:42:24] And everyone's going to process trauma a little bit differently. But for us, when we have to get facts, that is the least intrusive way that we can get it in the effort to really minimize the number of times they have to tell their story. And do you think this is best practice across the nation where SROs are trained to just do minimal facts questioning and not be trauma-informed trained?

[00:42:47] So they are trauma-informed trained. That's my point of the purpose of the Minimal Facts interview, is to ask the questions in a trauma-informed manner, if that makes sense. Are they specifically trauma-informed to, I assume maybe they are, but it wasn't in the MOU, but are they specifically trauma-informed trained for juveniles and teenagers?

[00:43:09] So the Minimal Facts interview is designed for all ages. So it's designed to, whether it's an adult victim or a juvenile victim, it's designed to just elicit enough information to help us understand the context of what we're dealing with, the safety, immediate safety, you know, concerns of the person that's there, so that we can line up all the appropriate investigative steps, the right timing, you know, if there's, you know, if there's forensic examinations or evidence that we can collect, that's why we need to know the timing and all the different things that go with it.

[00:43:42] but to do it in as least intrusive a way as possible so that we are being trauma-informed. Okay. On pages 10 and 14 of your presentation, we're talking about collaboration, interview protocols for underage assault cases. This all happens after it's passed on to the SVU unit, correct? Correct.

[00:44:00] Like there aren't dogs or soft interview rooms inside the schools? Correct. Okay. On page 14, the last bullet, victims informed of the next step. This is not at the time it's with the SRO office, right? Can you repeat that one more time?

[00:44:19] Let me go to page 14. But I guess my point is a lot of the stuff that's described in the presentation is stuff that happens after it's passed on from an SRO's office. It's not happening in the schools specifically.

[00:44:35] That is correct. And we really strive to not do as much as possible in the schools because that isn't the best environment. The best environment is the Loudon Child Advocacy Center, and so that is where we strive to get, you know, all of our cases and victims taken to for that forensic interview so that they've got the most supportive, the most trauma-informed environment.

[00:44:58] Are there ever any other people in the room when an SRO is interviewing, like a parent or a counselor or someone from the administration? Yes, so you're talking about that initial interview at the school? Yeah, the initial interview.

[00:45:14] There are cases, yes, where people from school administration or things like that can be present during that interview. Okay. Are there ever any times when you ask the student who could potentially be a victim to go directly to the hospital instead of going home? So there, I mean, there's cases that could the SRO do that?

[00:45:33] Yes. So there are cases that take all shape and form. Now, that's not likely to be a decision made by the SRO. That's likely to be a decision made by the special victims unit, supervisor or detective. So that communication happens very quickly. This is cell phone calls. This isn't I file a report and three days later the special victims unit takes this.

[00:45:52] This is immediate notification saying, hey, I've got a child here who has either specific injuries or maybe have forensic evidence on them, and they need a SANE examination or a forensic nurse examination, something like that. The detective will be lining up those investigative steps and in coordination.

[00:46:12] So the SVU officer could show up at the school? Yeah. Yes, absolutely. Okay, okay, great. In the MOU on page two, implicit bias training is required. Is this just racial implicit bias or is there other types of implicit bias that's discussed in this training? So it is all unconscious bias.

[00:46:29] All unconscious bias, including LGBTQI, gender. Awesome, that's great. On page five, it says, as soon as it becomes evident that a reportable offense has occurred, school officials shall stop. Oh, we already talked about that.

[00:46:44] Okay, on crime reporting, about that so the other thing that i found very concerning in the mou was on page six and i wondered under what authority um are sros allowed to stop question interview take law enforcement action without prior authorization of a school administrator a parent or a guardian the way that reads to me is that it gives police officers blanket authority to question stop search any student without calling a parent or um having a counselor present or someone from the administration

[00:47:19] present so do you know under what authority sros will be allowed to do that sure so sros are law enforcement officers the same powers they have in the community they have in the schools um however you know so they have that authority within the schools you know if there's criminal activity and things like that going on but our sro our our sros work extremely closely with school administration And I think our statistics and everything point that out, that we're not there to try to hem kids up or place charges on kids.

[00:47:49] We charge very, very, very few kids in the school system, and we work very closely and collaboratively with the school administrators. So they have their law enforcement powers. Are you saying in Virginia a law enforcement officer is allowed to question, search, or interview a minor without a parent's consent?

[00:48:10] Yes. Yeah, there are times that we can do that, and there are times when that's necessary. So there's specific situations that you're allowed to do it under Virginia, just specific situations. So, yeah, there are times, yes, that we can question juveniles without parents present.

[00:48:26] Okay, okay. So the MOU reads as if you can do that in any case, any time you want. So I think that the MOU should specifically state when a police officer has the authority to stop, question, interview, search a minor without parental consent.

[00:48:48] Okay. I mean, so deputies don't stop becoming law enforcement officers. That power is inherent. I'm not asking them to. I'm asking them to tell their parents if they're going to stop, interview, search, or question a minor on school property.

[00:49:03] right do you know what i'm saying like um yes and what i would say is we we collaborate like i said very very closely with school administration we work closely with parents we notify parents we we've got a track record of that in the schools um the authority to do something and when we exercise the full authority of it is two very different things okay thank you that's all i have right now until i do my motion thank you supervisor umstead uh thank you chair sorok and uh colonel thank you so much for being here and also thank you to lpd for being here as well i appreciate it

[00:49:44] as you know we've we've had at least two allegations of sexual assaults in the schools and a third allegation that the title ii process in the schools seemed unsupportive of the family alleging an inappropriate touching by a teacher um so i'd like to get into the title nine after after i have a conversation with colonel sawyer when when you have a complaint that comes to the attention of an sro whether directly from a student or from a teacher or from a school

[00:50:22] administration what kind of time delay is there between the sro becoming aware of an allegation The turnover to the SVU and I don't want to get into specific names of any of the the victims or their families But we've had two similar incidents in two different high schools What is your understanding of how quickly the SVU becomes involved once an SRO knows?

[00:50:54] That there's a an allegation. Yes, so that information, you know, like I mentioned just briefly go travels very very quickly So once an SRO becomes aware of an allegation of sexual assault, you know, within a school, they're going to notify their sergeant, who's going to notify the sergeant of the special victims unit, who's going to review the facts and assign a detective as appropriate.

[00:51:17] Follow-up for that may take different, you know, timelines in different forms depending on when that, you know, the allegation occurred. If it's something that occurred two weeks ago and it's not a family member, the person has a safe, supportive environment, you know, that they can go home to, then follow-up may be the following week, you know, when they schedule with the family to go to the Loudoun Child Advocacy Center.

[00:51:38] But that also may be very, very different if it is, you know, a family member that's alleged to be the offender and, you know, or there is, you know, a very, very close, you know, short time window from when it occurred where physical evidence may be present and the SVU detective may come right down to the school.

[00:51:55] So that notification process will happen very quickly, but it's the special victims unit supervisor and detective assigned that kind of triages what that immediate response needs to look like. All right. So you and I, previous to this meeting, had discussed a perception that one family had that someone in law enforcement who was aware of a young woman's complaint of sexual assault had said the case was iffy.

[00:52:32] And you indicated that that has been a source of frustration to you because you can't find further evidence of that. So let me ask you, are your SROs trained to take seriously allegations of sexual assault by either young women or young men when they first learn of it?

[00:52:58] Yes, absolutely. They are trained to do that minimal facts interview to establish whether it appears that a sexual offense has occurred and make that notification immediately. All right. Would you become unaware, is there a possibility that your office would not be made aware by the schools of a Title IX allegation?

[00:53:28] Or do you feel that school administration has been effective in notifying your office, whether via SRO or otherwise, as soon as they become aware of any kind of assault in the schools?

[00:53:47] So generally speaking, just because they have a Title IX investigation doesn't mean that there's also a criminal offense. So there can be Title IX, you know, violations and investigations that never come our way because there's no allegation of criminal offense. The MOU does require that if there are allegations of sexual offense, they are required to notify us of that.

[00:54:07] All right. Are your SROs trained to exhibit to the, let's say, a young woman or a young man who has been sexually assaulted to exhibit sympathy and empathy? Yes, absolutely.

[00:54:25] And if there were allegations, credible allegations, that an SRO had not met that highest standard, would you look into an investigation of how that SRO handled the case?

[00:54:40] Yes. Yeah, we take complaints very seriously, and we take them in any form. So anyone who may have something that they're not satisfied with is welcome to share it with us directly by phone. They can go online to our website. They can use our app and submit a tip.

[00:54:59] They can literally let us know any way. We take them all very, very seriously, and we'll look into it. We hold our deputies to a very high professionalism standard. Thank you very much. On Title IX, I think as LCPS is aware, we have a family that has been covered in the media saying that they found the Title IX process in LCPS to be unsupportive of their concerns and somewhat dismissive.

[00:55:30] What has LCPS done to make sure that Title IX cases are handled appropriately and with sympathy towards the victim and the family? Thank you for that question.

[00:55:47] So the Title IX office within LCPS over the past year has evolved. And within the past year, we have hired a Title IX coordinator and two deputy Title IX coordinators.

[00:56:06] What I would say is, you know, just as Colonel Sawyer stated, they take allegations of sexual assault, sexual harassment very seriously. So does LCPS. We implemented a system by which school administrators are required to submit any incident which could elevate at all to a Title IX violation.

[00:56:32] And those are all reviewed by our Title IX coordinator and our deputy Title IX coordinators. Essentially, one of the three of those individuals reaches out to the complainant and or their parents. We have developed a fact sheet, a student family fact sheet on Title IX.

[00:56:55] Sometimes it's very difficult for individuals to understand why our investigators are not investigating, why it does not rise to the level of a Title IX violation as is stated by the regulations. So we try to provide information in all aspects.

[00:57:14] It's on our website, it's in a document that is translated and can be sent out. We offer opportunities for them to meet directly with our deputy Title IX coordinators or Title IX coordinator. Each one of our deputy Title IX coordinators is actually a former LPD detective of major crimes, investigated rapes, was part of a FBI task force into trafficking.

[00:57:44] was involved in a internet crimes against children type task force, is trained in trauma related investigative tactics, and our other deputy coordinator is a former child protective services investigator.

[00:58:05] So both of those individuals are familiar with the specifics that when you refer to empathy and sympathy in regards to interviewing children who could potentially be the victims of horrific crimes,

they're both very trained in both of those avenues.

[00:58:31] The other aspect is we work very closely with our unified mental health team to provide supportive measures in regards to counseling services. Anything that is specifically requested or needed by the complainant and or the respondent.

[00:58:49] Does that answer your question? It does. And if you had a complaint that a Title IX coordinator appeared to be hostile or non-receptive to a student and that student's parents, what action would you take?

[00:59:08] We would investigate it just like we would any other complaint against any other LCPS employee. All right. Thank you very much. Thank you, Mr. Chair. Ms. Reiser. Thank you, mr. Chair. I'm supervisor. I'm stat I wanted to also add to that that our office of ombuds is someone that I called on and I believe it's a specific matter You might be talking about we had public comment from a family and I immediately reached out to miss Williams and put that family in touch with our ombuds so that There was and that is why we have the office of ombuds so that there is a check and a balance

[00:59:45] And I learned later because that that family is not in my district But as you know the decisions we make affect everybody so it doesn't really matter But I did later learn from the board member that Represents that district that he went down into the audience and spoke with them as well. So we were responsive immediately Thank you coach our glass. Thank you. And thank you ms. Boland and lieutenant colonel Sawyer for the presentation Is LCPS able to complete a Title IX investigation simultaneously to LCSO, completing a criminal investigation?

[01:00:26] We have no choice. We are required by law. In the regulation, it does allow for us to give some leeway for law enforcement to conduct their initial interviews.

[01:00:43] And then typically we work very closely together. So if we're involved, they're involved. We're going back and forth, and we know once they've made their initial investigations in regards to interviews so that we don't blindside anyone and catch anyone off guard.

[01:01:04] But typically we allow five business days before we have to start our Title IX investigation. Are different levels of evidence needed to determine violations between a Title IX investigation and a criminal investigation, For instance, preponderance of evidence versus beyond a reasonable doubt?

[01:01:27] So criminally, it is proof beyond a reasonable doubt is what we need, which is a higher standard for sure. And we do a piece of evidence. Okay. So referencing to slide 11, page 12 in the packet, the chart shows that a detective and a Title IX investigator complete separate investigations.

[01:01:50] Is there any communication between LCPS or LCSL notifying the other entity of the investigation? Yes, so the communication really begins at the school level, and then it continues from there.

[01:02:07] So, you know, LCPS staff in the Title IX office will discuss with detectives in the special victims unit and the supervision there as far as the progress and coordinating that response. That doesn't mean that we're in the same room, you know, for interviews and things like that.

[01:02:25] But as far as communication, as far as flow goes, we do keep each other aware. Can a Title IX investigation yield different results than a criminal investigation, meaning someone can be found guilty of a Title IX violation but not charged criminally with a crime?

[01:02:41] Absolutely. How does LCPS reconcile with their Title IX findings if someone is later found not guilty or guilty of committing a criminal offense? they're two different things entirely does does law enforcement notify lcps if a student is arrested or found guilty of committing a crime so there are our notification requirements based on where an offense occurs like if it occurs on school property or things like that there's also

[01:03:17] other uh requirements by the code of virginia for certain types of offenses that occur in the community to notify the uh the school administration as well can we do that one more in response to the funding or staffing needs request presentation says that lcs oh sorry appropriately and investigates cases so does that mean that no additional funding or staffing is needing needed for investigations or victim support services that's correct at this time I believe we're appropriately staffed to be able to handle the caseload that we currently have I did put in there what

[01:03:55] our caseloads currently are and where that threshold is so if we get to the where we start exceeding 75 cases per year we will be in front of the Board of Supervisors asking for additional detective positions. Okay thank you. Mr. Reiser. Thank you. I just have a few quick questions because I think most of mine were hit by the other committee members. One of the things I was going to ask I think you just answered there were some new positions allotted to the LCSO this budget so I think 36 none of those are going to the SVU or the

[01:04:30] sexual crimes units that's correct those are all field deputy positions okay thank you um you said that the minimal time between or the time between minimal facts and svu is sometimes just a phone call what is the maximum and do you have parameters for what the maximum should be so we really don't have a maximum that that's that's not um not necessarily a good way to look at it so um reporting on everything is uh is required to be done on the same day so any any time any patrol deputy any sro

[01:05:05] any report they take that report is required to be filed on that you know on that day they are not allowed to go home without completing that that report um so any case that's going to go to our investigations division by the end of the day even if that phone call doesn't occur by the end of the day our our investigations you know team is is going to know about it okay so there's a floor and a ceiling yes okay that's what i was looking for thank you um two other questions the processing of sexual assault or rape kits um what is the amount of time that usually takes if there's

[01:05:40] a floor ceiling an average so that processing is done by the department of forensic science and so sorry let me rephrase my question how long would it be before it's sent out like is there a typical average time so all that's handled by our property evidence section i'm not aware of any delay in in kits being sent out and i'm not meaning to imply there was any delay i just was wondering in the normal course of business if a kit is collected when would lcso send it out

[01:06:16] so it would be processed to go out right away i'll have to follow back up with a specific you know time frame okay but it's going to be a very short time frame okay thank you and my last question is do you also in in a situation where it's a school-based defense would you also interview the the alleged assailant yes so that gets into um you know the investigative steps based again on the nature of you know timing when it happened if it occurred two weeks prior versus you know that same day the timing on that situation would you uh leave the

[01:06:51] premises would the officer taking the report leave the premises without speaking with the assailant so the sro would not be the one it would be a member of the special victims unit so and there are

those cases where we send more than one detective to the school so that we can do you know follow up with multiple people at the same time and if you couldn't locate the assailant what would happen um we would be working very diligently to locate them yeah okay thank you that's all i so there was a previous line of questioning about the lcps's uh right and obligation to conduct a

[01:07:28] Title IX investigation parallel to any criminal investigation that's going on. And I don't have a question related to it. I just wanted to say I appreciate that in the in-process revisions to the MOU, that's made very clear where it was not prior, because I know that's been a bone of contention in the past, and there's been confusion about obligations and when those investigations should occur. So I appreciate that those revisions are in there and being supported by all sides.

[01:08:02] Supervisor Briskman. Thank you. I just had two more quick questions. It used to be the SROs reported up into the patrol unit, and now they're reporting up into criminal investigations. When did that change occur? Sure. So the SRO unit used to be under operational support division. So it wasn't patrol, but it was the division that had a lot of the specialty units, motors, traffic, know things like that so that changed January of 2022 is when we moved them from operational support division to criminal investigations and really that move is for the efficiency of communication between those two units because the SRO unit and the special victims unit especially can work

[01:08:40] together so closely so often it's just easier to have them both reporting up through the chain of command which is through so it had nothing to do with the cases no man that we've been discussing okay the grand jury report indicated that the process of communications was problematic and that the schools may not maybe were not notified necessarily of an arrest and learned about the arrest of the first perpetrator in October when it came out in the news media I understand that there was some issue with the wrong person being on the list

[01:09:17] of who you're supposed to send that information to has that been rectified this communication process so that notification was from juvenile court services unit it wasn't through the it's not a requirement allowed in kind of sheriff's office is a requirement of juvenile court services unit and yes there was some you know some confusion with that but we but it also said sorry it also says in the MOU that the LC so will notify the schools and a principal when someone's been charged or arrested right or yes so we we do make a lot of notifications

[01:09:51] now and that is an area that we've strengthened is communication between us even in in areas that's not required it's not a requirement of us to make the notification we're now making notifications even in areas that's not required but doesn't the mou require you to notify if there's been a charge or criminal alleged a criminal offense so yes the alleged criminal offense yes but not the charge But not the charges.

[01:10:15] When it comes to actual charges later, that's a requirement to juvenile court services. Okay. However, again, we are making notifications to the school division on charging now. Okay, so that was one thing that was changed. Yeah? Okay. I'm ready to make my motion unless we want to do something else.

[01:10:33] Is there any further discussion? So, Supervisor Bristman, this is an information item tonight, so I believe if you want to make a motion, you'll have to move to suspend the rules prior to making a motion. I move we suspend the rules. - Sir, second.

[01:10:49] - Second. - Seconded by Ms. Reeser. There's no discussion on the motion. It requires a two thirds vote in order to pass. All in favor of suspending the rules for Supervisor Briskin to make a motion, please raise your hand and say aye. - Aye. - That motion will pass unanimously of committee members present with core vote absent for the vote.

[01:11:08] Go ahead, Supervisor Briskin. - Thank you. I move that the Joint School Board Committee and Board of Supervisors Committee recommend that the Loudoun County School Board make the following changes to its MOU with the Loudoun County Sheriff's Office on school resource officers. One, remove the terms whenever feasible under the required training on page two of the MOU and include a fifth required SRO training on trauma-informed policing tactics and interview techniques specifically designed to better serve minors potentially involved in sexual assault

[01:11:40] or domestic assault situations, and two, remove language seen on page six of the MOU that allows SROs to, quote, stop, question, interview, and take law enforcement action without prior authorization of the school administrator or contacting parents and legal guardians and replace it with language that requires parents and legal guardians and school administration to be notified prior to any of these actions. Seconded by co-chair class, Ms. Supervisor Briskman, would you like to speak your motion? I would. Thank you very much. I just want to reiterate, in a school system with more

[01:12:18] than 80,000 students, I don't think that we have a systemic issue with sexual violence, sexual assault. There's 82,000 students, and we have had one, two, maybe three highly publicized cases, and we might question why they were highly publicized. However, looking at the MOU, I thought that we should, and hopefully my committee members agree, that we should make some adjustments to make sure that we serve our students in the best way possible who might be facing these situations and thus the recommendation hopefully that the committee will adopt that the

[01:12:56] Loudoun County School Board make these changes in the MOU as it moves forward. Thank you Chair Sorotkin. Thank you. Supervisor Umstead. Thank you Chair Sorotkin. May I request that these two uh motions be separated there's a motion to divide the question yes is there a seconded by miss reaser uh any further any discussion on the motion to divide seeing none all in favor of dividing the question please raise your hand say aye aye that motion will pass unanimously of uh

[01:13:33] members present with miss corvo absent for the vote thank you and chair surat can may i ask a question of um colonel sawyer sure go ahead thank you colonel on the first part of supervisor briskin's motion which is to remove the terms whenever feasible under the required training on page two of the mou and include a fifth required sro training on trauma-informed policing tactics and interview techniques. It's not clear to me that this would be something new that you're not

[01:14:13] already doing. So do you consider that you already are training your SROs on trauma-informed policing tactics and interview techniques specifically with minors who are the victims of sexual assault or domestic abuse yes um and if i could also add that um the phrase whenever feasible we are sometimes at the whim of the places that provide the training um and there are instances where we have to change an sro out in the middle of a you know in the middle of a

[01:14:49] school year maybe bring in a new sro and that training may not be available within the 60 day within the 60-day window so that the whenever feasible phrase is really there for us not to not to get around it as a you know a way to not do the training but it's a way to understand that look we may have to put an sro into a school prior to them getting this training and if the training is you know national training

that doesn't come to our area you know for a period of time it may be longer than 60 days before we're able to get that that training so that's what that wherever feasible is important for us if this if the school board were if the joint

[01:15:29] committee were to pass this first motion and the school system were to implement it as part of the MOU do you feel that would interfere with effective law enforcement so I don't have the draft motion in front of me my understanding as far as the training goes you know as long as it's training that that is in congruence with the national standards and the best practices that we're already doing you know we're all for training we train as much as we can not opposed to having more training um you know so as long as it's training that's consistent with you know the standards and

[01:16:05] the accreditation of the things that we have i've got no problem with that my bigger concern i think with the language is just on that wherever fee whenever feasible because again that is sometimes needed for us just when it comes to moving people in different positions dealing with an sro who's got a long-term injury you know or things like that we need to put somebody in a school all right Thank you very much, Mr. Chair.

[01:16:27] I'll support the first motion given that Colonel Sawyer has given his advice to the school board members of this committee. And I think you know best how to implement his advice.

[01:16:47] Thank you. Thank you. Just one note. I would note that the MOU at the end of the day does have to be mutually agreed upon between the Loudoun County Public Schools and the law enforcement organization. so we cannot you know unilaterally agree to things but we can certainly uh recommend changes and then discuss it and negotiate with the sheriff's office and and leesburg police miss brisman uh sorry miss rieser no problem thank you mr chair i was going to just point the same thing out that this is a motion to recommend for the school board to to look at these changes so we can certainly discuss whether there's better language than whenever feasible maybe um unless

[01:17:25] exceptional circumstances exist or something that I'm sure our staff and yours can work out so that it's helpful instead of impeding further discussion on the motion co-chair class thank you I support these recommendations coming out of this committee and I I think this will better help our students our parents and law enforcement who need to interact with one another you know when a lieutenant

[01:18:01] colonel sawyer said that um when you um said that you all are for more training i think this is this will be beneficial um for the county so thank you any further discussion supervisor bestman thank you um lieutenant colonel did i mishear you because i thought you said earlier that you're that everyone's trauma-informed trained but it's for all ages and not specifically for minors and adolescents right so the the training for minimal facts interview covers all all ages okay but

[01:18:39] there's there isn't a training for sros that's specific to this age group oh not that i'm aware of but you can sros have excuse me in the past have specific training for child infused issues they've experienced through trauma so the sros have received the training specific to children Okay, great. Well, I appreciate everyone supporting the motion. And, you know, if you're already getting the training, then it shouldn't be a problem to put it in the MOU. And I'd love to hear at some point what that training is. Thank you, Chair Sorokin.

[01:19:14] Thank you. Any further discussion on the motion? Seeing none, all in favor of the motion to recommend removal of the terms wherever feasible under required training on page two of the MOU,

please raise your hand and say aye. Aye. That motion will pass unanimously of committee members present with Ms. Corvo absent for the vote.

[01:19:38] So now we're on the second half of the divided question to remove the language seen on page six of the MOU that allows SROs to stop question, interview, and take law enforcement action without prior authorization of the school administrator or contacting parents and legal guardians, and to replace it with language that requires parents and legal guardians and school administration to be notified prior to any of these actions.

[01:20:04] Ms. Brissman, would you like to speak to your motion? Sure. to the second half of the motion I frankly find it terrifying that law enforcement officers might be able to interview I mean you just need to watch the movie about the Central Park 5 where parents were trying to get in to talk to their children and they couldn't get in and they ended up being charged and almost like thrown in prison and and all that so that that's the images that I have in my head when I see a blanket statement that law enforcement will be allowed to interview, question, detain, search students without any parameters around that.

[01:20:41] I understand sometimes there would be a need, depending on circumstances and types of cases, that you might want to interview someone or need to interview someone before you speak with parents. But if that is the case, then I would be much more comfortable as a parent, and I think the community would be much more comfortable. If that's specified in the MOU, because the way it reads in the MOU right now, it looks like a blanket statement and I'm not accusing anybody of doing anything. I'm not, you know, I, well, I do have an email in here where a mom was trying to get in when her daughter was being interviewed by an officer and two other people in her school and the mom was not able to get there in time. So that concerned me when

[01:21:21] I heard that story, but also just the story of being able to, you know, interview kids without their parents and without a counselor and without an administrator present is very concerning to me. And so if there are times when that needs to happen, I'd like to see it specifically stated in the MOU. Thank you. Supervisor Umstead. Thank you, Mr. Chair.

[01:21:42] May I offer some clarification, please? Go ahead, Captain. Yeah. If you can look at page 16 of the MOU proposed MOU document, you'll see a table that explains our interviewing of students and what it's limited to. So we may have done a, we may need some work on our wording in the specific paragraph you're citing. But if you look at that document, it actually says, for example, a juvenile suspect for an on-campus offense school or sro shall attempt to notify parents of the violation so we do spell out in that chart when parents need to be notified when we can talk to them without talking to a parent for a juvenile witness or victim of parental permission for an on-campus event is not necessary because they're they're a victim or a witness to the offense right

[01:22:20] so there's no um there's no threat of them being charged with anything per se because we just want to know what happened with the offense so we do have some outline in there so i i don't want to to leave you with the thought that we don't have this outline. We do have an outline, we maybe need some, to clean up that language in that paragraph that you're citing, but we're happy to do so.

[01:22:37] - Thank you, can you tell me the page again that you were referring to? - Page 16, it's the last page of the MOU document. - Okay, I'll take a look, thank you. - Yeah, I'd also add that that's in the language of the current MOU on page 15.

[01:22:53] So if you're looking at the current MOU, page 15, the draft MOU, page 16. - Okay, thank you. - Supervisor Armstrong. - Thank you, thank you. I appreciate it. I will not support this motion, although I very much sympathize with Supervisor Briskman's concerns.

[01:23:16] However, there are emergencies that arise. There are students who bring guns to school and start shooting. I think law enforcement needs the flexibility to deal with situations that are serious and immediate without asking for parents' permission or administrators' permission.

[01:23:41] I think law enforcement understands that we all as parents want to make sure, if our kids are not a danger to anybody, that parents be notified, or certainly school administration.

[01:23:57] I think we all want parents involved whenever it can be done safely. But in some cases, it's an emergency, and law enforcement needs to be able to act. So I will not support this, though I appreciate where it comes from.

[01:24:14] Thank you. Additional questions? Co-Chair Glass. Supervisor, I understand what you're trying to say. I think that there are times, like you said, that you all have to immediately assess the situation and and go through the process so is there a way that we could look at it that it's not a not like a blanket because that's what it looks like that it's when we were looking through it that it it

[01:24:53] felt like it was most of the um situations that occur that that would that um parents would not have access to their children absolutely and i'll jump back into that chart on the i'm sorry we have lot of copies of this document floating around but it's on my page 16 of the working draft it says generally interviews should be limited to when delay may increase imminent risk of danger destruction of evidence or flight of this the suspect so we agree in our MOU to only question students at school when that event occurred on campus meaning and they give we even give the definition on campus means the offense occurred on school property on a school

[01:25:32] bus or at a school sponsored activity event off campus means the converse so So we do not question students about off-campus events at school unless that exigency applies. If there's a danger to another student, if they said they're going to kill another student, then we may go to that school to ensure that they're not armed and they can't hurt somebody.

[01:25:51] Other than that, if there was a fight at the 7-Eleven on Friday night, we're not going to the school to talk to the kid about that event because we don't question them about anything that happens off of campus, at school, unless it's absolutely necessary. Okay. Thank you.

[01:26:08] Ms. Reeser. Thank you, Mr. Chair. So when we were discussing the MOU back in 2021, this was one of the topics that came up because there was some concern from community members that gave public comment on parents not being notified.

[01:26:26] And I remember the conversation then centered around perhaps including the situations in which on campus for an on-campus event a law enforcement officer would such as exigent circumstances would would do this and I'm having a hard time finding some of the language you're talking about in the pages that you're talking about so I just can't quite get on the same on the same place but are you is is this and it may have been that this was added after that meeting the table that you're referring to is that part of the MOU now and it appears to be in the

[01:27:05] attachment I just want to make sure sure thank you so besides exigent circumstances are there any circumstances in which thank you very much yeah that's exactly what I was looking at where a student would be interviewed without their parents being notified or an attempt being made to notify their guardians or parents so there could be an instance again you know, they may be, you know, witness or victim if the parent is the alleged offender. So there are

[01:27:44] some circumstances, yes, where that's... Right. And I think the concern was around the language of witnesses specifically. And I think we were not able to address it when we were trying to draft this MOU because the MOU at that point, it had been a lot longer than two years since it had been redrafted. And I think in the interest of getting something on paper, that particular item kind of went by the wayside so while I I don't think it's appropriate to completely remove this authority because I think it is necessary to protect our kids I and I don't have a substitute motion to make but I do think that this

[01:28:23] is something regardless of how this motion is decided that we could perhaps converse about and try to address some of the concerns that have been raised about how it reads if if you all are amenable to that and i can similarly i can't support this motion because i think it's i think the blanket statement that's in there now is not great but i think also replacing it with a blanket statement in the other direction is equally not great because the the truth and reality is somewhere in between so i would fully support uh staffs taking a look

[01:29:01] look at this to try and see if we could come up with language that makes sense, but I can't support the motion as is. Ms. Reeser. Supervisor Briskman, would you consider amending a friendly amendment to instead of remove the language, change that to review the language so that the school board has an opportunity to continue the discussion? Absolutely. Thank you. You're welcome.

[01:29:24] So without objection, the motion will be amended to ask staff to review this language. any further discussion sounds good thanks okay any further discussion I'm good thank you okay seeing none all in favor of the motion please raise your hand and say aye aye that motion will pass unanimously of committee members present with Ms. Corbo absent for the vote so any further discussion regarding this information item seeing none we will move

[01:30:00] to item seven which is adjournment we are adjourned thank you everyone

